

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

PLAINTIFF'S WITNESS AND EXHIBIT LIST

The Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, hereby gives notification that they may use the following as Witnesses and Exhibits in the above styled cause:

1. **Witnesses:**

- a. Cheryl Peake
900 9th Ave E
Palmetto, FL 34221
(941)-722-3191
- b. Detective Vincent Diorio
Palmetto Police Department
820 10th Ave W
Palmetto, FL 34221
(941)-721-2000
- c. E. Blake Melhuish, Esq.
E. Blake Melhuish, P.A.
522 12th Street West
Bradenton, FL 34205
(941)-748-1976

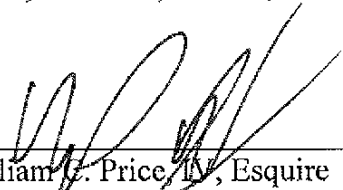
2. **Exhibits:**

- A. Prospectus of Colonial Manor
- B. Rules and Regulations of Colonial Manor

- C. Lease for Lot #214 with Mr. Burkett's Signature
- D. Notice of Termination of Lease
- E. Proof of Certified Mailing of Notice of Termination of Lease
- F. Affidavit of Indebtedness
- G. Affidavit of Attorney's Fees
- H. Palmetto Police Department Probable Cause Affidavit

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Exhibit and Witness List has been furnished to the Defendants, GREGORY DOUGLAS BURKETT at 14470 Harlee Road, Palmetto, FL 34221 and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #214, Palmetto, Florida, 34221 on this 12 day of July, 2023.



William C. Price, III, Esquire
Florida Bar No. 1003106
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for Plaintiff

COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.

Page 1 of 6

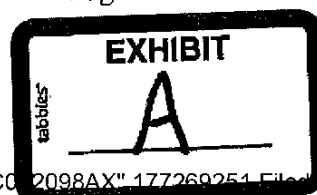


TABLE OF CONTENTS

	<u>PAGE NUMBER</u>
SUMMARY	1
NAME AND ADDRESS OF PARK	3
RECEIPT OF NOTICES AND DEMANDS	3
PARK PROPERTY DESCRIPTION	3
RECREATIONAL AND COMMON FACILITIES	3 - 4
PARK MANAGEMENT AND MAINTENANCE	4
MOBILE HOME OWNER REQUIRED IMPROVEMENTS	4
UTILITIES AND OTHER SERVICES	4 - 5
INCREASES IN RENT AND OTHER CHARGES	5 - 6
PARK RULES AND REGULATIONS	6
ZONING CLASSIFICATION	6
ZONING	6
EXHIBITS	6

PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging..

9. PARK RULES AND REGULATIONS

- A. Current Park Rules and Regulations - see Exhibits.
- B. Changes in Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

- A. Rules and Regulations of the Mobile Home Park.
- B. Lease Agreement between Park owner and mobile home owner.
- C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

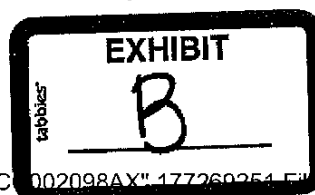
2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in



the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

PAGE 4 OF 4

20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #__, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP
900 - 9th Avenue East
Palmetto, Florida 34221.

Palmetto, Florida 34221 Phone: (941) 722-3191

Lease Agreement

This lease is made this 13th day of August, 2008, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Gregory Barkett and Casey Martin, hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 214 in Colonial Mobile Manor in Palmetto, Florida for a term to commence September 1, 2021 and terminate December 31 annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 394.00 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900.00 per year, payable \$ 75.00 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated January 1, 2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectively signed this lease as of the day and year first written above.

COLONIAL MANOR M.I.F.

By

Paul Burke, Manager

Data:

✱

Gregory Burken

✕

Tiffani Marie



"20230418104648" Filed at Manatee County Clerk 04/18/2023 10:46:48 AM EDT

Lot 214

COLONIAL MANOR MOBILE HOME PARK

900 9TH AVENUE EAST
PALMETTO, FLORIDA 34221
PHONE (941)-722-3191

LOT#

214

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND
REGULATIONS OF COLONIAL MANOR MOBILE HOME PARK,
WHICH I (WE) AGREE TO ABIDE BY.

DATE

8/18/20

Liffany Martin
[Signature]

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191
February 17, 2023

DATE:

TO: GREGORY DOUGLAS BURKETT AND ANY UNKNOWN TENANT(S)
Residing at 900 9th Avenue East, Lot 214, Palmetto, FL 34221

ADDRESS: 900 9th Avenue East, Lot 214
Palmetto, FL 34221

CMRR: #7015-1730-0000-4535-9523 AND BY POSTING

GREGORY DOUGLAS BURKETT

ADDITIONAL 14470 Florice Road
ADDRESS Palmetto, FL 34221
CMRR: #7015-1730-0000-4535-9530

RE:

NOTICE OF TERMINATION OF LEASE

YOU ARE NOTIFIED THAT PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9th AVENUE EAST, LOT #214, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE MARCH 23, 2023. THIS NOTICE IS A RESULT OF FAILURE TO COMPLY WITH RULE 2 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY ENGAGING IN CONDUCT WHICH AFFECTS THE QUIET ENJOYMENT OF THE PARK AND ITS RESIDENTS. IF YOU REMAIN IN THE PREMISES BEYOND THIS DATE, YOU WILL BE CONSIDERED A TENANT AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

COLONIAL MANOR MHC HOLDINGS, LLC
900 9th AVENUE EAST
PALMETTO, FLORIDA 34221
LANDLORD

Cheryl Peake
CHERYL PEAKE

Additional service by posting a copy at residence

By: Cheryl Peake
Cheryl Peake, Community Manager
COLONIAL MANOR MHC HOLDINGS, LLC

2-17-23
Date of Posting

EXHIBIT

D

"202

d at Manatee County Clerk 04/18/2023 10:46:48 AM EDT

7015 1730 0000 4535 9530

U.S. Postal Service
CERTIFIED MAIL® RECEIPT
Domestic Mail Only

For delivery information, visit our website at www.usps.com®

OFFICIAL USE

Certified Mail Fee \$

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$

☐ Return Receipt (electronic) \$

☐ Certified Mail Restricted Delivery \$

☐ Adult Signature Required \$

☐ Adult Signature Restricted Delivery \$

Postage \$

Total Postage and Fees \$

Sent to GREGORY DOUGLAS BURKE

Street or PO Box No. 14170 Hailee Rd

City, State, ZIP+4® Palmetto, FL 34221

PS Form 3811, April 2015 PSN 7530-02-000-9053 See Reverse for Instructions

Postmark
Here

0557 1730 0000 4535 9530

U.S. Postal Service
CERTIFIED MAIL® RECEIPT
Domestic Mail Only

For delivery information, visit our website at www.usps.com®

OFFICIAL USE

Certified Mail Fee \$

Extra Services & Fees (check box, add fee as appropriate)

☐ Return Receipt (hardcopy) \$

☐ Return Receipt (electronic) \$

☐ Certified Mail Restricted Delivery \$

☐ Adult Signature Required \$

☐ Adult Signature Restricted Delivery \$

Postage \$

Total Postage and Fees \$

Sent to GREGORY DOUGLAS BURKE

Street or PO Box No. 14170 Hailee Rd

City, State, ZIP+4® Palmetto, FL 34221

PS Form 3811, April 2015 PSN 7530-02-000-9053 See Reverse for Instructions

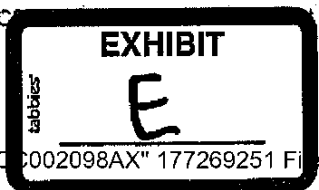
Postmark
Here

SENDER: COMPLETE THIS SECTION	COMPLETE THIS SECTION ON DELIVERY
■ Complete items 1, 2, and 3. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.	A. Signature <u>[Signature]</u> ☐ Agent ☐ Addressee B. Received by (Printed Name) _____ C. Date of Delivery _____ D. Is delivery address different from item 1? ☐ Yes ☒ No If YES, enter delivery address below: _____
1. Article Addressed to: <u>GREGORY DOUGLAS BURKE</u> <u>14170 Hailee Road</u> Legal Mail <u>Palmetto, FL 34221</u>	3. Service Type ☐ Adult Signature ☐ Priority Mail Express® ☐ Adult Signature Restricted Delivery ☐ Registered Mail™ ☐ Certified Mail® ☐ Registered Mail Restricted Delivery ☒ Certified Mail Restricted Delivery ☐ Signature Confirmation™ ☐ Collect on Delivery ☐ Signature Confirmation Restricted Delivery ☐ Collect on Delivery Restricted Delivery ☒ XRR ☐ Insured Mail ☐ Insured Mail Restricted Delivery (over \$500)
2. Article Number (Transfer from service label) 7015 1730 0000 4535 9530	

PS Form 3811, July 2020 PSN 7530-02-000-9053 Domestic Return Receipt

"2023CC

Manatee County Clerk 04/19/2023 10:46:48 AM EDT



"2023CC0002098AX" 177269251 Filed at Manatee County Clerk 07/12/2023 03:20:18 PM EDT

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

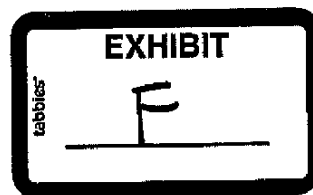
AFFIDAVIT OF INDEBTEDNESS

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared CHERYL PEAKE, Park Manager of COLONIAL MANOR MHC HOLDINGS, LLC, who, being first duly sworn, deposes and says:

The following is a breakdown of the fees, costs and expenses incurred in the above referenced cause relating to 900 9th Avenue East, Lot #214, Palmetto, Florida, inclusive of the anticipated costs of judicial sale:

Past Due Rent including late fees including July 2023	\$2,260.50	
Water and Sewer Fees including late fees	\$1,213.25	
Attorney Fees	\$2,880.00	(see Exhibit C)
Costs	\$905.05	(see Exhibit B)
Total Indebtedness:	\$7,258.8	

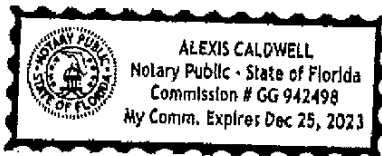


FURTHER AFFIANT SAYETH NOT.

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue West
Palmetto, Florida 34221

By: 
Cheryl Peake, Park Manager

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, this 12th day of July 2023, by CHERYL PEAKE, who is ☒ personally known to me or ☐ produced identification; type of identification produced: _____.



My Commission Expires: 12/25/23


Notary Public, State of Florida at Large

Alexis Caldwell
Printed Name of Notary Public

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, I.L.C.,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

AFFIDAVIT OF ATTORNEY'S FEES

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared **E. BLAKE MELHUISE**,
ESQUIRE, of Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. I have been a practicing attorney in Manatee County, Florida, since 1989 and, as such, I am familiar with the fees charged by attorneys for legal proceedings in this Court and in Manatee County, Florida.

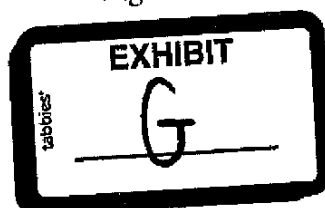
2. I have no interest whatsoever in this cause, and am not associated in the practice of law with William C. Price, III, P.A., although we share office space.

3. I have had occasion to examine the file in this cause, and I am familiar with same.

4. That on the basis of the examination of the file, the difficulty of the matter and the time expected to perform legal services, and my knowledge of the fees customarily charged, it is my opinion that \$300.00 per hour is a reasonable hourly fee for the services rendered, that seven (9.6) hours is a reasonable amount of time to perform the services required of attorney in the above styled matter and that the sum of \$2,880.00 is a reasonable attorney's fee for prosecution of the above styled cause.

FURTHER AFFIANT SAYETH NOT.

Page 1 of 2

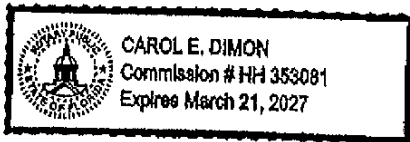


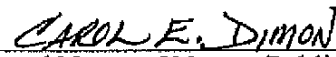

E. BLAKE MELHUISE, ESQUIRE
Florida Bar No. 0825972
E. BLAKE MELHUISE, P.A.

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, by E. BLAKE MELHUISE, ESQUIRE, ☒ who is personally known, on this 12th day of July, 2023.


Notary Public, State of Florida at Large

My Commission Expires:




Printed Name of Notary Public

22-8799

Case No. 22003002

Charge Description 2ND DEGREE MURDER WITH A FIREARM (775.087)		Statute No. 782		Section 04		Subsection 2		Degree C capitol F 1st		S 2nd L 3rd life		P special penalty N n/a		1F			
Level of Charge 1-Felony 2-Traffic Felony 3-Misdemeanor 4-Traffic 5-Ordinance 6-Other		1		GOC L conspire to attempt M accessory to attempt Q principal to attempt		A attempt B assault C conspiracy		F facilitate P principal S solicitation		T threat X aid and abet Y accessory before the fact		AA accessory after the fact N not applicable		P			
Bond Amount 0		Court Date & Time 01/27/2023		Docket Number 0900		Court R circuit		C county J juvenile		Defendant Hold		Y yes N no		Related OBTS No 0			
UCR Code 090A		Offense Activity N n/a A fraud		B buy D deliver E use F forgery		K dispense M make/cultivate O counterfeit P possess		R smuggle S sell T trafficking X skin prop Z embezzle		N		Drug Type A amphetamine B barbiturate C cocaine		E heroin F paraphernalia H hallucinogen M marijuana		O opium derivative R rock S synthetic U unknown N n/a Z other	
Drug Unit 1 gram 2 milligram 3 kilogram		4 ounce 5 pound 6 ton		8 milliliter 9 dose/unit		Quantity of Units 0		No of offenses Cleared		UK unknown DO - DO		02		SAQ Number 0			
Victim/Arrestee Relationship 00 n/a 01 undetermined		02 stranger 03 spouse 04 ex-spouse 05 co-habitant		06 parent 07 brother/sister 08 child 09 step-parent		10 step-child 11 in-law 12 other family 13 student		14 teacher 15 child of girlfriend friend 16 girlfriend friend 17 friend		18 neighbor 19 alter/day care 20 employee 21 employer		22 landlord/tenant 23 acquaintance 29 other unknown		16			

Charge Description POSS FIREARM/ WEAPON/AMMO BY CONV FL FELON				Statute No. 790	Section 23	Subsection 1A	Degree C capitol F 1st	S 2nd T 3rd L life	P special penalty N n/a	S	
Level of Charge 1-Felony 2-Traffic Felony 3-Misdemeanor 4-Traffic 6-Ordinance 8-Other 1				GOC L conspire to attempt M accessory to attempt Q principal to attempt	A attempt B assault C conspiracy	F facilitate P principal S solicitation	T threat X aid and abet Y accessory before the fact	AA accessory after the fact N not applicable	P		
Bond Amount 7500		Court Date & Time 01/27/2023 0900		Docket Number 0900		Court R circuit J juvenile R		Defendant Y yes N no 		Related OBTS No 	
UCR Code 5200	Offense Activity N n/a A fraud	B buy D deliver E use F forgery	K dispense M make/cultivate O counterfeit P possess	R smuggle S sell T trafficking X illicit prop Z embezzle	N	Drug Type A amphetamine B barbiturate C cocaine	E heroin P paraphernalia R hallucinogen M marijuana	O opium derivative R rock S synthetic U unknown	N n/a Z other N		
Drug Unit 1 gram 2 milligram 3 kilogram	1 ounce 6 pound 6 ton	8 milliliter dose/unit 	Quantity of Units 	No of offenses Cleared 	UK unknown 00 - 99 	02	SAO Number 				
Victim/Arrestee Relationship 00 n/a 01 undetermined	02 stranger 03 spouse 04 ex-spouse 05 co-habitant	06 parent 07 brother/sister 08 child 09 step-parent	10 step-child 11 in-law 12 other family 13 student	14 teacher 15 child of girl/boy friend 16 girl/boy friend 17 friend	18 neighbor 19 sibling/day care 20 employee	22 landlord/tenant 23 acquaintance 99 other unknown	02				

EXHIBIT
H

☐ CAPIAS REQUEST ☒ ARREST ☐ JUVENILE REFERRAL ☐ WARRANT ☐ SUMMONS

Booking No:

OBTS No:

PERSON ARRESTED / SUSPECT

JUVENILE

"2023CC002098AX" 177269251 Filed at Manatee County Clerk 07/12/2023 03:20:18 PM EDT

**PALMETTO POLICE DEPARTMENT NARRATIVE SUPPLEMENTAL/
CONTINUATION Palmetto Ordinance 20-2**

Ordnance 20-2		Case No. 22003002	
Name (Last, First, Middle) BURKETT SR GREGORY DOUGLAS		Race W	Sex M Date of Birth 06/21/1953
Narrative			
On the above listed date and time, the defendant did violate the listed Florida State Statutes by doing the following:			
The Palmetto Police Department was contacted by an individual in reference to a possible shooting that occurred at 900 9th Avenue East lot 214 (Colonial Mobile Home Park). Upon the primary officer's arrival at the office of Colonial Mobile Home Park, they met with the complainant and the defendant. During the interviews being conducted, the complainant advised the defendant told her that he shot his girlfriend inside their residence (lot 214). The defendant advised the officer conducting the interview that his girlfriend had run away and he had not seen her. The officers and defendant then responded to lot 214 and prior to making entry, asked the defendant for consent. At this time, the defendant advised the officers that he had shot his girlfriend and she was dead inside of the residence. An officer then made entry and located the victim inside of a bedroom dead from an apparent gunshot wound. The officer then backed out of the residence and secured the scene. The defendant was also detained at this time.			
Detectives from the Palmetto Police Department and the Manatee County Homicide Task Force responded to the scene to begin an investigation. An audio recorded interview was conducted with the defendant after being read his Miranda rights. The defendant agreed to speak with detectives. The defendant advised he and the victim have been in a romantic relationship for approximately seven years. Throughout those seven years, the victim has been verbally abusive and continuously calls the defendant vulgar names. On the date of the shooting, the defendant advised he finally had enough and during a verbal altercation, turned around and away from the victim and observed his firearm (.380 caliber). The defendant advised he retrieved the firearm, placed the barrel of the firearm under the chin of the victim, angled it towards her brain, and then pulled the trigger. The defendant advised he believed the incident was two days prior to today's date. The defendant advised the victim appeared to die instantly and he felt relief once the shooting was completed. The defendant advised he did not contact anyone, nor was anyone else inside of the residence during the time of the shooting and any time thereafter. The defendant advised he did not touch the victim or attempt to move her after the incident. The defendant advised he is a convicted felon and would not advise who or where he purchased the firearm. The defendant advised he checked on the victim once or twice and each time, still felt relief that she was no longer alive. During a search of the residence, a spent .380 caliber casing was located inside of a trash can as well as a .380 caliber handgun.			
Another interview was also conducted with the original complainant who confirmed the defendant told her and acted out the way he shot the victim. The complainant advised she messaged a friend to contact 911 because the defendant was still inside of the office with her and she did not want to aggravate the defendant by calling 911.			
The Medical Examiner arrived on scene and conducted a preliminary examination. Based upon the examination, a single gunshot entrance wound was located near the victim's lower right ear, but there were no obvious exit wounds. This gunshot wound appears to be the cause of death from homicidal violence.			
During the interview with the defendant, he advised he was a convicted felon due to a fraud that occurred in the past. A criminal history was completed on the defendant which confirmed he was a convicted felon as of 02/04/1980.			
This 22nd Day of December 2022		I swear that the above statement is correct and true to the best of my knowledge and belief.	
Coot 1665 Notary Public		Affiant Vincent K. Lin ID # 1643	

IN THE CIRCUIT/COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN
AND FOR SARASOTA COUNTY, FLORIDA

**RE: NO CONTACT WITH THE VICTIM ORDER
AS A CONDITION OF PRETRIAL RELEASE/**

Administrative Order 2015-14.3

WHEREAS, Section 903.047, Florida Statutes was amended effective October 1, 2015, to provide additional specifications for a "no contact" with the victim order as a condition of pretrial release: and

WHEREAS, defendants may be released pretrial numerous ways, including but not limited to : released on his recognizance (ROR); released on bond before an advisory hearing; released on bond after an advisory hearing; and release on pretrial supervision with various conditions; and

WHEREAS, in order to ensure that all defendants on pretrial release are provided with a "no contact" with the victim order, the sheriffs of the Twelfth Judicial Circuit must be able to provide said order to defendants;

THEREFORE, IT IS ORDERED that pursuant to the authority conferred by Florida Rule of Judicial Administration 2.215, the "no contact" with the victim order shall apply as a condition of pretrial release to all applicable defendants and shall be provided to defendants by the sheriffs of the Twelfth Judicial circuit prior to their release:

1. As a condition of pretrial release, whether such release is by surety bail bond or recognizance bond or in some other form, all defendants in criminal cases must:
 - (a) Refrain from criminal activity of any kind.
 - (b) Refrain from any contact with the victim(s) in defendant's case(s). **This no contact order is effective immediately and enforceable for the duration of the pretrial release or until modified by the court.** "No contact" includes the following prohibited acts:
 - 1) Communicating orally or in any written form, either in person, telephonically, or in any other manner, either directly or indirectly through a third person with the victim or any other person named in the order. If the victim and the defendant have children in common, at the defendant's request, the court may designate an appropriate third person to contact the victim for the sole purpose of facilitating the defendant's contact with the children. **This does not prohibit an attorney for the defendant consistent with rules regulating The Florida Bar, from communicating with any person protected by the no contact order for lawful purposes.**
 - 2) Having physical or violent contact with the victim or other named person or his or her property.
 - 3) Being within 500 feet of the victim's or other named person's residence, even if the defendant and the victim or other named person share the residence.
 - 4) Being within 500 feet of the victim's or other named person's vehicle, place of employment, or a specified place frequented regularly by such person.
2. An invitation for contact from the victim does not affect this order and is not a defense to a violation of the no contact order. Contact with the victim, despite arising from an invitation from the victim, constitutes a violation of the no contact order.
3. Defendants shall receive a copy of this Administrative Order from the Sheriff's Office prior to defendant's release from custody on any applicable pretrial release.
4. The prohibitions contained herein are subject to modification by court order and may be supplemented by court order to include additional prohibitions.
5. This order is effective October 1, 2015.

DONE and ORDERED in Sarasota County, Florida on this 30th day of September, 2015.

Brown

INMATE LAST NAME & SIGNATURE:
<i>[Signature]</i>
INMATE NUMBER: <u>20-8799</u>
DELIVERED ON (DATE/TIME): <u>12-21-22</u>
BY: (DEPUTY INITIAL/ID NUMBER)
<u>ASU+</u>

[Signature]
CHARLES E. WILLIAMS, CHIEF JUDGE
TWELFTH JUDICIAL CIRCUIT COURT
STATE OF FLORIDA

PALMETTO POLICE DEPARTMENT
COST AFFIDAVIT, VICTIM NOTIFICATION, AND DOMESTIC VIOLENCE RECEIPTS

VICTIM NAME MARINO, TIFFANY, ANN CASE # 22003002
VICTIM DOB 11/23/1970 VICTIM RACE W VICTIM SEX F
DEFENDANT NAME BURKETT SR, GREGORY BOOKING #
JUVENILE VICTIM ☐ YES ☒ NO VICTIM DECEASED ☒ YES ☐ NO SAO #
PARENT/GUARDIAN: ☐ NEXT OF KIN ☒ NAME VAIL, CHRISTYN
PERSON TO BE NOTIFIED HOME PHONE (813) 956-8339 WORK/OTHER PHONE
ADDRESS LKA- 2000 GANDY BLVD N APT 137, ST PETERSBURG, FL 33702

ARREST DATE 12/21/2022 BONDED/ ROR DATE EXP. OF SENTENCE DATE

☐ **THIS DEFENDANT POSES AN UNUSUAL SAFETY RISK TO THE VICTIM. NOTIFICATION OF RELEASE OF THE DEFENDANT SHOULD BE DONE IMMEDIATELY!**

VICTIM NOTIFIED OF ARREST: ☐ BY MAIL, ☐ BY PHONE, ☐ IN PERSON, BY
DATE NAME, I.D. AGENCY
VICTIM NOTIFIED OF BOND/ROR: ☐ BY MAIL, ☐ BY PHONE, ☐ IN PERSON BY
DATE NAME, I.D. AGENCY
VICTIM NOTIFIED OF EXPIRATION OF SENTENCE ☐ BY MAIL, ☐ BY PHONE, ☐ IN PERSON BY
DATE NAME, I.D. AGENCY

DOMESTIC VIOLENCE / SEXUAL BATTERY RECEIPTS

ON (date) I (full name)

- ☐ RECEIVED A COPY OF THE DOMESTIC VIOLENCE NOTICE OF LEGAL RIGHTS AND REMEDIES
☐ RECEIVED A PAMPHLET CREATED BY THE CLERK OF THE CIRCUIT COURT SINCE TOMORROW IS EITHER A WEEKEND OR LEGAL HOLIDAY
☐ RECEIVED A COPY OF THE SEXUAL BATTERY NOTICE OF LEGAL RIGHTS AND REMEDIES

RECEIVED FROM VICTIMS SIGNATURE

SAO USE ONLY
AFFIDAVIT FOR COST

IN THE (CIRCUIT / COUNTY) COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE COUNTY, STATE OF FLORIDA

PLAINTIFF
VS.
DEFENDANT CASE #

LAW ENFORCEMENT USE ONLY

DEFENDANT: BURKETT SR, GREGORY AGENCY CASE # 22003002
ARREST DATE 12/21/2022 CHARGES 2ND DEGREE MURDER WITH A FIREARM, POSSESSION OF FIREARM BY CONVICTED FELON

COMES NOW the affiant, and states the following investigative costs have been incurred by the above mentioned law enforcement agency in connection with the criminal investigation of this case. Said law enforcement agency respectfully request that these cost be included and entered in the judgment rendered against the defendant as provided in section 939.01, Florida statutes to be deposited in their law enforcement trust fund. The cost are as follows:

- ☐ Misdemeanor - \$100.00 ☒ Felony - \$200.00 ☐ Extra ordinary investigative expenses were incurred -see attached itemized statement.

By signature below, affiant does swear/affirm that the facts contained herein are true and correct.

 #1642
Officer
Sworn to and subscribed before me this 22ND day of DECEMBER, 20 22

Signature of law enforcement officer/supervisor/notary public

FILED FOR RECORD
DEC 22 PM 3:31
CLERK OF THE CIRCUIT COURT
MANATEE CO., FLORIDA